
This act summary is provided for the convenience of the public and members of the General Assembly. It is intended to provide a general summary of the act and may not be exhaustive. It has been prepared by the staff of the Office of Legislative Counsel without input from members of the General Assembly. It is not intended to aid in the interpretation of legislation or to serve as a source of legislative intent.

Act No. 141 (H.660). An act relating to fiscal year 2027 Opioid Abatement Special Fund and Substance Misuse Prevention Special Fund appropriations

Subjects: Human services; opioid use disorder; Opioid Abatement Special Fund; fiscal year 2027 appropriations

This act appropriates funds in fiscal year 2027 from the Opioid Abatement Special Fund for programming, services, and staffing related to opioid use disorder, such as for outreach or case management staff positions, peer recovery center coaches, and new recovery residence beds. It specifies that it is the intent of the General Assembly to consider the funding needs of the overdose prevention center during the fiscal year 2027 budget adjustment process and appropriate up to \$1,100,000.00 if it finds that a location for the overdose prevention center has been procured, the overdose prevention center is being fit up for its intended use, and the overdose prevention center is currently or will imminently become operational. This act reverts previous fiscal year Opioid Abatement Special Fund appropriations for satellite locations, wound care, and stabilization beds back to the Special Fund. It requires the Department of Health to submit quarterly reports to the General Assembly regarding Opioid Abatement Special Fund expenditures in fiscal year 2027.

This act amends the list of stakeholders that the Opioid Settlement Advisory Committee is required to consult with to include the Health Equity Advisory Commission. It specifies that each funding proposal submitted to the Advisory Committee shall contain a sustainability plan from the applicant to ensure consideration of future expenses and available resources apart from the Opioid Abatement Special Fund. It further requires the Advisory Committee to consult with the Office of the Attorney General regarding allowable uses of the Opioid Abatement Special Fund.

This act prohibits the Opioid Settlement Advisory Committee from accepting new funding proposals from the Opioid Abatement Special Fund in fiscal year 2028, except where previous statute anticipated annual funding. It instead requires the Advisory Committee to review the outcomes of programs and initiatives previously funded through the Opioid Abatement Special Fund to assess effectiveness, long-term sustainability, and the appropriateness of the Special Fund as a funding source, where applicable, to inform recommendations made in fiscal year 2029 and thereafter.

This act requires the Department of Health to submit a plan to the General Assembly by December 15, 2026, containing recommendations for the implementation of one or more syringe recovery models throughout the State, including requiring syringe service providers to report on the percentage of distributed syringes that are returned to the provider or otherwise collected.

Lastly, this act appropriates funds in fiscal year 2027 from the Substance Misuse Prevention Special Fund for programming and services related to substance use disorder.

It directs the Department of Health as part of its annual budget presentation to report on specific spending proposals from the Substance Misuse Prevention Special Fund for the coming fiscal year, including an estimate of the monies in the Special Fund anticipated to remain unallocated at the end of the fiscal year.

Effective Date: July 1, 2026